



**Kaumbuthu (Suing as the Legal Representative of Douglas Kaumbuthu) v
Board of Management Njotene Primary School & 2 others (Environment &
Land Case E002 of 2023) [2025] KEELC 46 (KLR) (22 January 2025) (Ruling)**

Neutral citation: [2025] KEELC 46 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT MERU
ENVIRONMENT & LAND CASE E002 OF 2023
BM EBOSO, J
JANUARY 22, 2025**

BETWEEN

**JUDITH KAUMBUTHU (SUING AS THE LEGAL REPRESENTATIVE OF
DOUGLAS KAUMBUTHU) PLAINTIFF**

AND

**THE BOARD OF MANAGEMENT NJOTENE PRIMARY
SCHOOL 1ST DEFENDANT
SUB COUNTY LAND ADJUDICATION & SETTLEMENT OFFICER IMENTI
NORTH & BUURI SUB COUNTIES 2ND DEFENDANT
THE HONOURABLE ATTORNEY GENERAL 3RD DEFENDANT**

RULING

EX-tempore

1. Through the application dated 11/12/2024, the defendants seek leave to amend their defence. Leave is necessary because pleadings have closed and this matter has a hearing date.
2. The plaintiff does not oppose the application but wants the date maintained.
3. In the circumstances, the defendants shall file and serve their amended defence within 7 (seven) days. The plaintiff shall have the right to reply to the amended defence within 7 (seven) days of service.
4. Hearing shall be on 3/3/2025 as earlier scheduled.

DATED, SIGNED AND DELIVERED AT MERU THIS 22ND DAY OF JANUARY, 2025

B M EBOSO [MR]

JUDGE



In the Presence of;

Mr. Mwirigi Kaburu for the Plaintiff/Respondent

Mr. Otieno for the 1st - 3rd Defendant

Court Assistant – Tupet

